

HOW TO APPLY:

1. **Read our Description of Clinic Services** document so you know about our process and how we prioritize and select cases
2. **Complete a Clinic Project Application** form that provides us with the following information:
 - a. **Project Description** answering the following questions:
 - What is the legal issue you would like addressed?
 - What are the facts or story surrounding the legal issue?
 - Who are the parties involved? (List all organizations and individuals that have a role in this issue)
 - What would you like the ELC to produce or do for you?
 - How long do you think will this project take? (Provide information about any important dates.)
 - b. **Contact Information** (for you, your organization and any authorized representatives), which we are required by the Law Society of British Columbia to obtain and record
 - c. **Read and Sign the Disclosure of Information below** We are unable to consider projects for the ELC Clinic until we have received the signed Acknowledgement form and completed application.
3. **Return the form to the ELC** by email (csandbor@uvic.ca or elc@uvic.ca), fax or mail. We may contact you for further information.

PLEASE NOTE: We are only able to consider projects for the ELC Clinic that have a completed Clinic Project Application form. The ELC typically reviews project proposals in August, December and April.

APPLICATION:**Part 1: Project Description**

What is the legal issue you would like addressed?

There are three central issues to be addressed: 1) We would like to determine the legal liability for BC Hydro in the destruction of fish habitat, specifically in relation to the orientation of the tail race (water channel used to release water from the powerplant) of the Jordan River BC Hydro powerplant. Relatedly, we would like to determine the legal responsibility attached to a history (both recent and historical) of abrupt and powerful releases of water that significantly impact salmon spawning habitat. BC Hydro's extreme limiting the flows into the river is also a problem (see Oct 5 2019 CBC report "Hundreds of

spawning salmon killed in Squamish river; BC Hydro admits responsibility for a similar problem happening elsewhere). This would likely require an analysis of the fisheries act. 2) We would like to investigate the provincial government's signing off on wood waste and mine waste that has contaminated the area to determine if a) due diligence was thoroughly followed, b) by today's standards, such signing off would still hold, and c) if not, what legal ramifications (i.e., liability) pertain. 3) We would like to determine what kind of liability and culpability WFP and Teck have for choosing to fill in the large and vital salt-marsh ecosystem in the 60's. This in filling of this valuable (and currently non-existent in the JR river system) salmon rearing habitat, happened after negligent mining practices caused the caving-in of the copper mine that eventually blew out the side of the mountain. The mass wasting from the explosion was then used, perhaps unlawfully, to fill in the vital salt marsh habitat.

Environmental justice in relation to Pacific salmon spawning and rearing habitat (that include steelhead trout and sea-run cutthroat trout) is a primary motivation for this work.

What are the facts or story surrounding the legal issue?

The Jordan River is historically a major salmon habitat and spawning river on southern Vancouver Island. Over the course of the 20th century, the river has been impacted by heavy resource extraction in the form of logging and mining, as well as the installation of major infrastructure in the form of dams and a powerplant that produces power during periods of peak times for Victoria. Both the extraction and infrastructure have significantly impacted the salmon in the river to the degree that salmon populations on the river have declined almost to the point of collapse. These salmon are of vital importance to the ecology of the river, and the ecology of the wilderness surrounding the river, as well as to the Southern Resident Orca Whales. They also have significant cultural value and represent possible future economic value.

With respect to mining, December 5, 1963 the mine operator was extracting copper ore from directly under the river channel bed. Due to a weakness in the rock, the channel bed collapsed into the underground mine. The collapse occurred about 5 km upstream from the bridge. Analysis by engineers determined the miners should have known the rock was weak and should not have been mining in this area. The collapse, caused a build-up of pressurized water underground that eventually blew out the side of a mountain adjacent to Jordan River, and resulted in large amounts of waste from the blow out. Because the waste was then obstructing log booming operations, the decision was made to in fill and destroy the estuary.

Additional impacts to the salmon have come from the operation of the Jordan River Hydro Project and specifically where the tail race was (and remains) positioned. The tail race directs and releases water that runs through the generator of the powerplant, and due to the pressure and volume of the water projected into the river, traditional spawning grounds have been destroyed. This is because salmon require a particular substrate, namely gravel, to spawn, and the water from the tail race is akin to having this substrate pressure-washed away. While community-led work has been done to begin to rehabilitate the area, the material cause of the problem (namely, the tail race) has not been addressed. Moreover, in times in which the reservoir reaches capacity, water is released at increased volume and force, essentially destroying any efforts to restore the habitat.

Who are the parties involved? (List all organizations and individuals that have a role in this issue)

BC Hydro, Teck Resources (formerly Teck Cominco), Western Forest Products, The Province of British Columbia, The Jordan River Roundtable, Department of Fisheries and Oceans, Environment Canada, BC Ministry of Environment, BC Ministry of Mines, Queesto, Pacheedaht Nation, T'Sooke

Nation. BC Hydro Fish and Wildlife Compensation Program, Water Use Plan Committee. Sitka Conservation Society.

What would you like the ELC to produce or do for you?

We would like to determine if there are opportunities to compile information (evidence) that could be used to make a case for responsibility from parties involved. Our hopes are that this investigation would lead involved parties having to take responsibility for the tangible rehabilitation and restoration of the affected areas of the Jordan River, ideally as measured by the recurring and sustainable return of salmon to the river itself.

This would be similar to the work done by the UVIC ELC that worked to highlight Teck's legacy responsibilities in Jordan River.

How long do you think will this project take? (Provide information about any important dates.)

1-2 semesters.

Part 2: Contact Information

Click or tap here to enter text.

Matter (brief description or file name)

FOR ORGANIZATIONS:

Name of organization: Click or tap here to enter text.

Address, City, Postal Code: Click or tap here to enter text.

Click or tap here to enter text.

General nature of the type of business or activities

Click or tap here to enter text.

Incorporation/business identification number (BIN) and place of issue of incorporation or BIN

Click or tap here to enter text.

Contact information for those individuals authorized to give instructions with respect to the matter for which the lawyer is retained

Name: Click or tap here to enter text.

Address: Click or tap here to enter text.

Position: Click or tap here to enter text.

Phone: Click or tap here to enter text.

Email address: Click or tap here to enter text.

FOR INDIVIDUALS:

Name: Neil Nunn (and Wayne Jackaman)

Address, City, Postal Code: 3861 Trailhead Drive, Jordan River, BC, V9Z 1L1

Occupation: PhD Candidate

Phone: 250.888.9166 (Wayne: 250 646 2001)

Email: wjackaman@shaw.ca, neil.j.nunn@gmail.com

If you are acting for or representing a third party beneficiary or a principal (e.g. EDRF lawyers representing a client), provide the above information about the principal or beneficiary as well.

Part 3: Disclosure of Information Acknowledgment

The client has read the above and the ELC Description of Clinic Services form. The client acknowledges that it is providing information that the Board of the Environmental Law Centre Society will consider in order to determine whether the Centre can provide legal services to the client. The Environmental Law Centre Society will treat all such information as confidential unless the client consents to it being treated otherwise. We must receive this completed form and application before the Board can discuss the matter.

If the client is a lawyer or law firm, they confirm they will not be paid at all for the work that the ELC does for them and they are either EDRF funded or acting *pro bono* or for a reduced fee.

Neil Nunn

Name of authorized representative


Signature

Please return the ELC Clinic Project Application by email, fax or mail to:

Environmental Law Centre
Murray and Anne Fraser Building
University of Victoria, PO Box 1700 STN CSC
Victoria, BC V8W 2Y2
Fax: 250.472.4528
Email: elc@uvic.ca

**For more information about the ELC,
please see our website at: <http://www.elc.uvic.ca>**